Human Rights in Indonesia: Among Constitutional Guarantees, Protection, and Enforcement Challenges

By Annisa Maulidia Azzahra

Human rights constitute one of the fundamental principles of a democratic state. They encompass not only individual freedom but also the right to fair treatment, education, decent employment, health services, freedom of expression, religious freedom, and protection from discrimination and violence. Therefore, respect for human rights is an important indicator of the quality of democracy and the rule of law.

As a state based on law, Indonesia has an obligation to respect, protect, and fulfill human rights. Following the amendments to the 1945 Constitution, human rights received a stronger constitutional position. Articles 28A to 28J provide constitutional guarantees for various fundamental rights. These provisions represent a significant milestone in the development of human rights protection in Indonesia.

Constitutional recognition demonstrates that human rights are not merely normative ideals but an integral part of Indonesia's legal system. However, constitutional guarantees alone cannot ensure that every individual will enjoy those rights in practice. There remains a gap between legal norms and their implementation. Although Indonesia has made progress through the ratification of international human rights instruments and the establishment of the National Human Rights Commission, various challenges remain, particularly regarding minority rights, civil liberties, and economic and social rights.

The Constitutional Foundation of Human Rights in Indonesia

Human rights protection in Indonesia is closely connected to the principles of the rule of law and democracy. The 1945 Constitution guarantees numerous fundamental rights, including the right to life, the right to form a family, the right to education, the right to employment, equality before the law, freedom of religion, freedom of communication and information, and protection from discriminatory treatment.

However, human rights within the Indonesian constitutional system are not entirely absolute. Article 28J recognizes that individuals have obligations to respect the rights of others and that certain limitations may be imposed on the exercise of rights and freedoms. Such limitations must be established by law and must serve legitimate purposes, including respect for the rights of others, morality, religious values, security, and public order within a democratic society.

The main challenge is determining the appropriate boundary between individual freedom and public interest. Restrictions on human rights cannot be imposed arbitrarily because excessive restrictions may undermine the very rights that the state is supposed to protect. Prabowo emphasizes the importance of carefully understanding constitutional limitations so that restrictions do not become instruments for weakening human rights protection.

Consequently, the state has two responsibilities that must be balanced. First, it must guarantee individual freedom. Second, it must ensure that the exercise of such freedom does not violate the rights of others. This balance is an essential characteristic of a democratic constitutional state.

The National Human Rights Commission and Human Rights Enforcement

The National Human Rights Commission (Komnas HAM) is one of the important institutions in Indonesia's human rights protection system. Its functions include research, assessment, education, monitoring, and mediation concerning human rights issues. Its establishment demonstrates that human rights protection cannot depend solely on courts but also requires an independent institution capable of monitoring state actions and promoting human rights.

Nevertheless, the effectiveness of Komnas HAM continues to face institutional challenges. Patra argues that the institutional position of Komnas HAM still contains several weaknesses that affect the effectiveness of its duties and functions. Institutional strengthening is therefore necessary to improve the Indonesian human rights protection system.

This institutional issue demonstrates that human rights protection requires cooperation among different actors. Komnas HAM cannot operate effectively without adequate support from law enforcement agencies, government institutions, civil society, and an independent judiciary. Human rights protection should therefore be understood as an integrated system rather than the responsibility of a single institution.

Freedom of Expression as a Contemporary Human Rights Issue

Freedom of expression has become one of the most significant human rights issues in the digital era. Social media has created unprecedented opportunities for citizens to express opinions, criticize government policies, disseminate information, and participate in democratic processes. At the same time, digital communication has generated new challenges, including misinformation, defamation, hate speech, and the potential criminalization of certain forms of expression.

The problem arises when regulations intended to maintain public order are implemented in ways that excessively restrict freedom of expression. Research concerning Indonesia's Electronic Information and Transactions Law indicates that certain provisions may create uncertainty and fear among citizens, journalists, civil society organizations, and government critics.

Law enforcement concerning freedom of expression should therefore follow the principle of proportionality. Not every statement that causes discomfort should automatically be treated as a criminal violation. In a democratic society, criticism of government institutions is an important mechanism of public accountability.

This issue has become even more important because digital technologies allow information to spread rapidly. The government must distinguish between legitimate political expression and conduct that genuinely violates the rights of others. An excessively repressive approach may

create a *chilling effect*, in which individuals refrain from expressing legitimate opinions because they fear legal consequences.

Protection of Vulnerable Groups

Human rights protection must also address the needs of vulnerable groups, including persons with disabilities, indigenous communities, children, women, minorities, and refugees. Equality does not necessarily mean treating every individual in exactly the same way. Rather, it means ensuring that everyone has a fair opportunity to enjoy their fundamental rights.

Persons with disabilities provide an important example. Legal recognition alone is insufficient if individuals continue to face barriers to education, employment, public facilities, transportation, and political participation. Suwandoko and Rihardi emphasize the importance of legal reform to strengthen the fulfillment of the human rights of persons with disabilities and to ensure that their dignity is protected without discrimination.

This illustrates that human rights have a broad social dimension. Human rights protection is not limited to political and civil liberties but also includes the ability of individuals to live with dignity. Education, healthcare, employment, social welfare, and access to public facilities are essential components of a human rights-based society.

Challenges of Human Rights Enforcement in Indonesia

One of the greatest challenges facing human rights protection in Indonesia is not simply the absence of legal rules but the gap between legal norms and actual implementation. A country may have extensive constitutional guarantees, but those guarantees become meaningless if law enforcement authorities fail to implement them consistently.

There are challenges in Indonesian human rights enforcement, including the protection of minority groups, economic and social rights, and the effectiveness of law enforcement. It also emphasize accountability, transparency, and judicial independence as important elements in strengthening the protection of civil liberties.

Another important issue is the development of constitutional mechanisms for protecting citizens' rights. A constitutional complaint mechanism could strengthen the protection of constitutional rights against actions by state authorities.

Such a mechanism could provide citizens with an additional avenue of protection when their constitutional rights are violated by government actions. The availability of effective remedies is particularly important because human rights protection is incomplete without meaningful access to justice.

Strengthening Human Rights Protection

Strengthening human rights protection in Indonesia requires more than simply creating new laws. Equally important is ensuring that existing laws are implemented consistently and fairly.

The independence of law enforcement institutions must be strengthened. Law enforcement influenced by political interests can undermine public confidence in state institutions and weaken the principle of equality before the law.

Human rights education should be expanded. Citizens should understand that human rights involve not only claims against the state but also responsibilities to respect the rights of other people. Human rights education can be promoted through schools, universities, government institutions, civil society organizations, and the media.

Complaint and remedy mechanisms for human rights violations must be accessible. Victims should not face unnecessarily complicated procedures or unaffordable costs when seeking justice.

Every restriction on human rights should have a clear legal basis, a legitimate objective, and a proportionate character. This principle is particularly important in regulating freedom of expression in the digital environment.

Bibliography

Feka, M., et al. (2025). Navigating the Legal Minefield: The Impact of Articles 27A and 27B of Indonesia EIT Law on Freedom of Expression and the Path to Legal Reform. *Journal Law and Legal Reform*. 6(1). DOI: https://doi.org/10.15294/jllr.v6i1.19116

Huda, K., Arifin, R. (2018). Human Rights in Indonesia: Between Protection, Fullfilment, and Lawa Enforcement. *Lex Scientia Law Review*. 2(2). DOI: https://doi.org/10.15294/lesrev.v2i2.73839

Patra, R. (2012). Penguatan Eksistensi Kelembagaan Komnas HAM dalam Sistem Ketatanegaraan Indonesia. *Masalah-masalah Hukum*. 41(2). DOI: https://doi.org/10.14710/mmh.41.2.2012.209-217

Prabowo, R. A. (2020). Beberapa Catatan Limitasi atas Limitasi Pengaturan HAM dalam Konstitusi. *Indonesian State Law Review*. 2(2). DOI: https://doi.org/10.15294/islrev.v2i2.23201

Suwandoko, Rihardi, S. A. (2020). Legal Reform for the Fulfilment of Disabilities Human Rights. *Unnes Law Journal*. 6(2). DOI: https://doi.org/10.15294/ulj.v6i2.38973